

requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

No party has established an economic inability to pay a pro rata share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split equally between the parties. (I.e., if there are five parties, each party to pay one-fifth of the initial retention fee. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.

14. 9:01 AM CASE NUMBER: C23-01219
CASE NAME: ELVECIO MACHADO VS. GINO CARUSO
***HEARING ON MOTION FOR DISCOVERY TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES (SET ONE)**
FILED BY: CARS TO GO TOWING, INC.
TENTATIVE RULING:

See Line 13.

15. 9:01 AM CASE NUMBER: MSC22-00522
CASE NAME: SABRINA MORALES VS CEMAL O KORKUT
***HEARING ON MOTION FOR DISCOVERY COMPEL SITE INSPECTION AND FOR MONETARY SANCTIONS AGAINST DEFENDANT CEMAL OGUZ KORKUT IN THE TOTAL AMOUNT OF \$5,010.00 AGAINST DEFENDANT**
FILED BY: MORALES, SABRINA
***TENTATIVE RULING**

Judgment has been entered in this case. The motion is dropped from calendar.

16. 9:01 AM CASE NUMBER: MSC21-00777
CASE NAME: COMFY HEATING & AIR CONDITIONING VS KRISHAN KALRA
***HEARING ON MOTION FOR DISCOVERY COMPEL PRODUCTION PURSUANT TO BUSINESS RECORDS SUBPOENA TO BIOGENEX LABORATORIES**
FILED BY: COMFY HEATING & AIR CONDITIONING INC
***TENTATIVE RULING**

On December 3, 2025, parties told the Court they settled the case.
Discovery motion dropped from Calendar per moving party's email to Dept. 32.

17. 9:01 AM CASE NUMBER: C22-00901

CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH

***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION AND PROD OF DOCS**

FILED BY: SALEHOMOUM, MOJDEH

***TENTATIVE RULING**

The Motion of Plaintiff Mojdeh Salehomoum to Compel the Deposition of Defendant David Bahrami-Daghigh and for Production of Document and Request for Monetary Sanctions as to Defendant Navid Bahrami-Daghigh and/or his Counsel of Record (Plaintiff's Motion) is granted, as to the deposition, the production of documents and as to imposition of sanctions.

1. Plaintiff Motion to Compel Deposition of Defendant
Section 2025.450(a) of the Code of Civil Procedure [CCP] provides

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under [Section 2025.230](#), without having served a valid objection under [Section 2025.410](#), fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

Plaintiff Salehomoum timely served a deposition notice on attorney Michael Waddington, Defendant Bahrami-Daghigh's counsel, on August 19, 2025. That notice sought a deposition of Defendant on September 9, 2025. (Ex. A to the Declaration of Geoffrey Steele filed November 25, 2025.) The notice was timely pursuant to CCP § 2025.270 in that it sought a deposition at least 10 days plus 2 courts days for service from the date of the service of the notice.

Defendant Bahrami-Daghigh did not object to this notice in a timely fashion. Sections 2025.410(a) and (b) require an objecting party to serve a written objection to the notice at least three calendar days prior the date for which the deposition is scheduled. Subsection (a) of CCP 2025.410 provides that a party that does not serve a timely written objection "waives any error or irregularity."

Defense counsel Waddington sent an email to Plaintiff counsel on Monday, September 8, 2025 –the day before the noticed deposition-- stating that his client would be "unable to sit for his deposition today [sic] due to the capacity of his attorney who intends to file a motion to be relieved of counsel by weeks [sic] end. I apologize for any inconvenience to council [sic] or client, as it is unintentional."

The November 8th email from defense counsel was defendant's only response to the notice and it did not constitute a timely objection to the Plaintiff's notice of deposition. First, it was not an objection to the notice at all. It was merely a notice that the defendant would not participate. Counsel Waddington did not assert a legal objection to the notice. Second, it was not timely because it was sent to Plaintiff only one day in advance of the noticed date instead of three days in advance as required by CCP § 2025.410. Defendant waived any error or irregularity to the notice pursuant to § 2025.410(a).

Counsel Waddington asserted that he “made Mr. Steele aware of having been diagnosed with a terminal illness.” The defense opposition papers do not specify when this notice was given to Counsel Steele. Counsel Waddington provided no description of how if at all his condition would preclude counsel from participating in a deposition. Nor did Counsel Waddington describe or request an accommodation that may have allowed the deposition to proceed. The deposition was noticed to be taken via video and audio conference (Zoom), thus avoiding any need for counsel or client to travel. Counsel Waddington stated that the defendant could sit for the deposition “due to the capacity of his attorney who intends to file a motion to be relieved of counsel by weeks [sic] end.” The court finds that this assertion lacks credibility as the email was sent November 8, 2025, and yet Mr. Waddington is still counsel of record as of January 8, 2026, two months after the assertion that he expected to be relieved as counsel by the end of the week of November 8, 2025.

Counsel Waddington has a duty to withdraw if he is unable to carry out representation of his client. The California Rules of Professional Conduct 1.16(a) provides in relevant part, “Except as stated in paragraph (c), a lawyer shall not represent a client or, where representation has commenced, shall withdraw from the representation of a client if...(3) the lawyer’s mental or physical condition renders it unreasonably difficult to carry out the representation effectively...”

Here, Counsel Waddington asserted that he did not have “the capacity” to defend the deposition of his client and did not communicate further with Counsel Steele. Counsel Waddington did not suggest a time or manner in which the deposition could proceed. He did not ask for a continuance, he did not ask for any conditions (such as shortened days) that would have allowed him to proceed with the deposition. There is no evidence that Counsel Waddington sought to associate another attorney to defend the deposition in his place, or to assist with document production. The court finds that Counsel Waddington, by asserting his lack of capacity to appear, not offering any conditions under which he or another attorney could appear for a deposition, and by not withdrawing as he stated he would, has failed to meet and confer in good faith with Counsel Steele.

In addition, the court finds that Counsel Waddington did not respond to the Plaintiff’s Counsel’s subsequent attempts to re-schedule the deposition. On September 17, 2025, Counsel Steele sent an email to Counsel Waddington to meet and confer and to see if he had in fact filed a motion to withdraw as he had stated he would do so by September 12, 2025. (Ex. D to Plaintiff’s Motion). After not hearing from Mr. Waddington by September 19, 2025, Plaintiff served another deposition notice for Defendant to appear on October 13, 2025. (Ex. E. to Plaintiff’s Motion). Even though Counsel Waddington did not serve any written objections to this notice, Defendant and his counsel failed to appear on October 13, 2025. (Ex. F to Plaintiff’s Motion).

The court finds that Counsel Waddington has not responded in good faith to Plaintiff’s meet and confer attempts to resolve the issue of Defendant’s deposition. Counsel Waddington has asserted for the past two years that he would be withdrawing from this matter based on undergoing treatment for cancer, in Case Management Conference Statements filed since February of 2024. He does not offer any solutions or cooperation—he asserts an intention to withdraw from the case as his explanation for non-cooperation and non-compliance but does not do so. (Ex. G, H and I to Plaintiff’s Motion.) The court

is not unsympathetic to counsel's health concerns, however, Counsel Waddington has a duty to withdraw if he is unable to represent his client effectively. While Counsel Waddington claims he cannot find another attorney to take over the case, there is nothing barring him from bringing in an attorney to defend a deposition or help with document production.

The court orders Counsel Waddington, by January 12, 2026 at noon, to provide three dates for the deposition of the defendant to Plaintiff in writing. Each of the dates on or before January 23, 2026. Plaintiff may select one of the three dates and the deposition is to proceed day to day excluding weekends and holidays until completed for a minimum of 6 hours a day unless the Plaintiff agrees to fewer hours each day. The deposition is to be accomplished by video and audio conference (Zoom). Counsel Waddington is also ordered to assist another attorney to prepare to defend Defendant during the deposition if he is unable personally to defend Defendant in the deposition.

2. Motion for Production of Documents

Defendant did not raise any arguments in opposition to the Plaintiff's motion for production of documents specified in the Plaintiff's Second Amended Notice of Deposition (attached as Ex. A to the Plaintiff's Motion). California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion." See *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257. The motion to compel production is granted. Defendant is ordered to respond and to produce documents at the time of the deposition.

3. Sanctions.

The court finds Plaintiff's request for \$5,062.50 to be reasonable and appropriate given the level of detail necessary to bring this motion, the time spent attending a deposition on October 13, 2025 that Defendant did not object to and did not attend, counsel's twenty years of experience in civil litigation, and billing rate of \$675 an hour.

The parties are reminded to appear on January 27, 2026 at 10:00 am in Department 32 for jury trial.